

Does Malta authorise water abstraction?

The Commission's description of Maltese law, tested against the law

THE CLAIM

“Malta has failed to put in place ... a prior authorisation regime to control the abstraction ...”

European Commission, July infringements package (INF/26/1376), 8 July 2026

Summary of its letter of formal notice to Malta, INFR(2026)2115 (the letter is not published).

The same text cites registration of surface-water abstraction and periodic review of these controls.

VERDICT

LARGELY SUPPORTED

Matches Maltese law as published.

SUPPORTED

LARGELY
SUPPORTED

NOT
SUBSTANTIATED

MISLEADING

CONTRADICTED

MAIN RESULTS

Art. 11(3)(e)

What the EU requires

Registers of abstraction, prior authorisation and periodic review. Abstractions with no significant impact may be exempted.

2008

Registered, not licensed

Groundwater sources had to be notified by Nov 2008. The law says notification gives no right to draw water.

Proposed

Permits still a plan

A 2023 Green Paper proposes ERA abstraction permits; in 2025 Malta called them “close to being finalised”. None in force on 6 Oct 2026.

3.4 km

Little surface water

Three short watercourses and two pools. We found no rule to register surface-water abstraction.

Review?

Not rated: a legal point

The law repeats the Directive's duty to review; the rules that run the controls set no term or review.

FAIR TO SAY

Malta does control sources: the register closed in 2008, no new boreholes since 2010 bar sea-wells, most private sources metered. In 2019 the Commission's staff called this an authorisation regime.

WHAT WOULD SETTLE IT

- ☐ The letter of formal notice and Malta's reply.
- ☐ ERA's count of registered, metered and reporting sources.
- ☐ The draft abstraction regulation (Measure 053) and its timetable.
- ☐ What Malta reports to Eurostat as surface-water abstraction.